

April

August 12, 2024 – Tentative Agreement – 5 PM

The Parties tentatively agree as follows for Sections 4, 18, 20, 22, 25, 27, 19, 15, 16, and 2:

SECTION 4 – RIGHTS OF B.E.A.

A. Bulletin Board

Each school shall provide adequate space on the present bulletin board for B.E.A. materials for the purpose of communications with the bargaining unit of official notice of, or results of, official business, activities, and meetings of the B.E.A. This shall not be interpreted to exclude others from the use of the bulletin board, but their use shall not deprive the B.E.A. of the exclusive use of the space reserved for the B.E.A.

B. B.E.A. Meetings

The B.E.A. shall have the privilege, without charge, of official membership meetings on school property within limits of the Board approved building use regulations. Meetings shall occur outside of the teacher workday, but may be scheduled at the discretion of the BEA for no more than 30 minutes within the teacher workday with at least 48 hours' notice to the building principal(s). This may not interfere with any mandatory/emergency teacher(s) meetings or work duties.

The BEA will be given at least one hour during one of the first two teacher workdays of the school calendar to meet with BEA members. Preferably, the meeting time will occur immediately before or after all staff convocation.

C. B.E.A. Business Release Time

B.E.A. shall be granted up to a total of nineteen (19) days per year of released time for use by teacher members for B.E.A. business with cost of travel and meeting borne by the B.E.A. Additionally, the B.E.A. shall be granted five (5) days of release time for use by teacher members for B.E.A. business with B.E.A. reimbursing the Board for the cost of the substitutes for these days. This benefit shall be limited to a maximum, at any one time, of three (3) teacher members for a maximum of two (2) days each. This released time is to be taken in increments of no less than half day increments unless approved by the building principal. All absence requests shall be submitted to the Superintendent/Superintendent's designee at least one (1) week prior to B.E.A. business meetings. Teachers shall receive regular pay during the approved absence period and substitutes will be provided as required.

D. Use of School-Owned Copy Equipment

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B.E.A. may use school-owned copy equipment and e-mail, providing that:

1. The use is for necessary and actual BEA business;
2. Use of equipment does not interfere with school-usage requirements and the operation is conducted by teaching personnel at such times other than contracted service periods;
3. The purpose is solely the legitimate and internal business of B.E.A. such as records, notices, and correspondence and not for public distribution; and
4. Cost of expendable supplies and equipment repairs from misuse shall be reimbursed by B.E.A.

E. Mailboxes/Email

The B.E.A. shall have, without charge, use of the District email, mail service and teacher mailboxes for communications to teachers. The Board shall not authorize another teacher labor organization to use the teacher email or mailboxes.

F. New Hires

The Assist. Superintendent shall inform the B.E.A. when there is a newly-hired bargaining unit member within five (5) work days of the member being hired. If a bargaining unit member's start date is prior to the recommendation to the Board to hire, the Assist. Superintendent will inform the B.E.A. president of the intention to recommend the hiring of a bargaining unit member.

The B.E.A. will be given at least one (1) hour of time during New Teacher Orientation to meet with newly hired bargaining unit members.

SECTION 18 – INTERACTIVE DISTANCE LEARNING

A. Definition

An Interactive Distance Learning (IDL) teacher is one presenting an entire course for student credit, through IDL technology, involving remote sites. Only teachers of the District can teach student-credit IDL originating in this District.

B. Job Security

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No teacher shall lose his/her job, or have his/her hours reduced, as a result of the implementation of IDL.

C. — Assignments

Assignments to IDL courses shall be made on a semester/yearly basis, and must be mutually agreed to by the teacher and the originating site district.

D. — Course Structure

The originating district shall determine the course of study for each IDL course offered. Each IDL teacher shall be solely responsible for the content, material selection, instruction, testing, and evaluation of students at the originating site and at all remote sites.

E. — Discipline

Behavior, discipline, and supervision of students at IDL remote sites shall be the responsibility of the remote site district.

F. — Equipment

IDL teachers shall be responsible for setting up and using the equipment according to training guidelines. Installation and major maintenance of IDL equipment shall be the responsibility of the originating district and shall be done in a timely manner.

G. — Make Up Work

Videotapes of an IDL course may be used for make-up work for all students enrolled in that IDL course. Remote sites are responsible for their students' make-up work.

H. — Videotapes

Videotapes of IDL courses are the property of the originating site district. If the originating site teacher requests it within five (5) days of the presentation, he/she shall receive a copy of his/her presentation at no cost.

I. — Teacher Evaluation

The evaluation of a teacher who teaches an IDL course(s) shall be in accordance with the evaluation process contained in the Agreement. All observations/evaluations shall require the physical presence of the

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evaluator. No observations or evaluations for the purpose of professional improvement or renewal or non-renewal of the teacher's contract shall be done or conducted by electronic means.

J. Class Size

The class size of an IDL course shall be based upon the appropriate number of students for the specific learning activity, and shall be small enough to allow for full two-way interactive participation. Because of the technology involved and because not all students are on site, total class size, including students at the originating site and those at the remote sites, shall not exceed twenty-five (25) students per teacher in no more than one (1) originating and three (3) remote locations unless there is agreement of the originating site teacher. Students at the remote sites shall not exceed the number of stations.

K. Teacher Absence

If the IDL teacher is absent, his/her substitute shall present the course.

L. Strikes

No IDL broadcast shall be provided to a school district where the teachers are conducting a legal strike.

M. Course Offerings

Course offerings with the Brecksville Broadview Heights City School District as the IDL remote site shall be limited to: (1) courses that are not in the existing curriculum OR (2) classes in the existing curriculum that are not being offered due to insufficient student enrollment OR (3) classes in the existing curriculum that are being offered but have very low student enrollment.

N. Compensation/Preparation Period

If the Brecksville Broadview Heights City School District is the originating site district, each teacher who is teaching a full-year IDL course shall have either: (1) an additional preparation period daily or its time equivalent for the first year he/she teaches on the IDL network, or (2) compensation of .108 of the BA base salary for the first year he/she teaches on the IDL network. The additional preparation time or compensation shall be pro-rated for IDL courses that are not a full year in length. Whether the teacher is given additional preparation time or compensation is determined by the administration.

O. Training

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Initial and on-going training regarding IDL shall be made available to each teacher who will be teaching an IDL course. Each teacher participating in administration approved training outside the normal school day/school year shall be compensated at .0007 of the BA base salary per hour.

P. Extended Day

If an IDL teacher presents an IDL course outside of the normal school day or normal school year, he/she shall be compensated at a pro rata amount of his/her normal daily rate of pay.

Q. First Year Evaluation

During a teacher's first year of teaching an IDL course, observations and/or evaluations of the teacher's IDL teaching shall have no adverse effect on the teacher's employment status with the Board. This provision has no B.E.A. ring on the evaluation of the teacher's other classes.

R. Travel

An originating site district teacher who may be required to use his/her personal automobile to travel between sites or to other meeting regarding IDL shall be reimbursed for his/her allowable mileage at the IRS mileage rate.

SECTION 20 – LEAVES

A. Sick Leave

1. Sick Leave Accumulation

- a. Each teacher shall be granted sick leave on the following basis: one and one-quarter (1¼) days for each completed month of service or, fifteen (15) days of each completed year of service.
- b. If needed, up to five (5) days of sick leave shall be advanced to all teachers without accumulated sick leave at the beginning of each school year.

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- c. Unused sick leave accumulation shall be unlimited.
- d. Each teacher shall be informed in writing on his/her paycheck the number of sick leave days he/she has accumulated.
- e. A teacher on an approved leave of absence (other than paid sick leave) shall neither accrue nor lose accumulated sick leave while on said leave. A teacher on paid sick leave may accrue sick leave at the rate of one and one-quarter (1¼) days for each completed month of service.

2. Approved Use of Sick Leave Days

- a. Each teacher shall be granted paid sick leave up to the maximum number of days that he/she has accumulated.
- b. Teachers may use sick leave for absence due to personal illness, pregnancy [from the birth of child may use up to six (6) weeks of sick leave for a non-cesarean childbirth, or up to eight (8) weeks of sick leave for a cesarean birth; these sick leave periods may be extended pending medical documentation], care for his/her newborn child up to 6 weeks of age, injury, or exposure to contagious disease.
- c. Teachers may use sick leave for absence due to illness, injury, or death in the immediate family. Immediate family shall be defined as spouse, child, parent, relative living in the same household as the teacher, **or any person for whom the bargaining unit member is the Medical Power of Attorney, any person for whom the bargaining unit member is a Legal Guardian appointed by a court of law, or any person living in the same household as the teacher and who clearly has stood in the same relationship to the teacher as a spouse, child, or parent although not related to the teacher by law.**
- d. Members of the family not listed above – Absence shall be granted up to but not to exceed five (5) days in any one (1) school year. Family in this category includes parent-in-law, grandparent, grandparent-in-law, grandchild, brother, sister, brother-in-law, sister-in-law, aunt, and uncle.

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- e. **Members of the family not listed above – Absence shall be granted up to but not to exceed three (3) days in any one school year for the death of the following family member: cousin; niece; nephew; or unique family-like circumstances, with prior approval. Sick leave shall not be advanced for this purpose.**
- f. Except for members of the immediate family, absence to provide day care for individuals who are ill is not considered an appropriate use of sick leave.
- g. In extenuating circumstances, the Superintendent/designee may grant additional days. With prior approval of his/her supervisor and contingent upon the availability of telework, teachers required by an order of the state and/or local department of health to quarantine due to a documented exposure to COVID-19 or other public health emergency issue may be permitted to telework and not charged sick leave..

3. Notification of Sick Leave Use

- a. In case of absence, a preschool and elementary (PreK-5) teacher must email or submit online (or telephone if email/online is not possible) his/her absence to the person or service responsible for obtaining substitutes before 7:00 a.m., a middle school teacher must email or submit online (or telephone if email/online is not possible) before 6:30 a.m., and a high school teacher must email or submit online (or telephone if email/online is not possible) before 6:00 a.m. If building start times are adjusted, these times shall likewise be adjusted a commensurate amount.
- b. If a teacher is absent on one day, and will not be returning to school the next day, he/she shall email or submit online (or telephone if email/online is not possible) his/her absence to the person or service responsible for obtaining substitutes by 2:00 p.m. on the day he/she is absent. Such notification is not necessary for known prolonged illnesses.

4. Long-Term Use of Sick Leave

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- a. For leaves that exceed sixty (60) consecutive days, the Superintendent may, at the Board's cost, require the teacher or the person for whom the leave is taken to be examined by a doctor selected by the Superintendent. If the opinion of the doctor selected by the Superintendent is that the continuation of sick leave is not medically necessary, the teacher or the person for whom the leave is taken shall be examined, at the Board's cost, by a second doctor selected jointly by the Superintendent, doctor and the treating physician of the teacher or person for whom leave is taken. The opinion of the second doctor in regard to continuation of sick leave shall be binding on the teacher and the Board as to the medical necessity of the leave.
- b. A teacher who leaves and returns in the same school year shall be returned to his/her same assignment.

5. Sick Leave *Note: NO TA. The parties do not have a TA on Sick Leave Bank.*

B. Religious Holidays

A maximum of two (2) days may be granted during any one (1) year for religious holidays which are not recognized in the school calendar, and which prohibit the teacher from working on those days. Religious holidays are not deductible from sick or personal leave.

C. Personal Leave

1. Each teacher shall be granted up to three (3) days of personal leave each school year without loss of salary.
2. Personal leave cannot be taken during "restricted time periods" which are defined as the first or last student day of the school year, any non-student school calendar day, and any Friday or Monday during the last four (4) weeks of school, or the day before or after holidays and long weekends.
3. During the "restricted time periods", personal leave may be approved for valid, disclosed reasons. Reasons that are considered to be valid are: funerals, weddings of the employee or of a family member, court appearances, emergencies that create a hazardous condition to the teacher's family or property, graduations, school programs/events of the teacher's child,

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college visitations, formal religious functions, moving, and travel conditions beyond the teacher's control making it impossible to report as assigned (documentation required for this last reason). Exceptions may be made at the absolute discretion of the Superintendent/designee with reason(s) for the request listed in the "Notes to the Administrator" of the online reporting system.

4. To apply for use of a personal leave day(s), the teacher shall submit his/her request utilizing the online reporting system at least five (5) days in advance of the use of personal leave, unless an emergency arises or there are unforeseen circumstances.
 - a. Where an emergency or unforeseen circumstance arises, the personal leave request may be submitted to the building principal who will immediately forward it to the Assistant Superintendent ~~Director of Human Resources~~ with less than the above- mentioned time schedule.
 - b. However, it is understood that certain circumstances may prevent submission of a request form prior to the emergency or unforeseen circumstances leave. In such instances, the teacher shall submit the request electronically the day following return from such leave. Any teacher requesting emergency or unforeseen circumstances leave shall notify the person responsible for providing substitutes as much in advance as possible prior to said leave.
5. Up to one personal leave day (inclusive of half day) that a teacher does not use during a school year shall be carried over into the following school year. The maximum number of personal leave days allotted in any school year will not exceed four (4) days (i.e. three (3) days assigned for the new school year and one (1) carry over). Any other accrued but unused personal days at the end of each school year shall be converted to sick leave and added to that teacher's sick leave accumulation.

D. Parental Leave

1. Parental leave of absence is a leave without pay and shall be for the balance of the year (the year being defined as July 1st through June 30th) in which delivery or adoption occurs or for

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a shorter period of time as requested by the teacher.

2. Request for parental leave must be made to the Superintendent no later than one (1) month prior to the beginning of the parental leave. If the one (1) month notice cannot be given, the teacher shall notify the Superintendent as soon as possible. A request for parental leave may be withdrawn at any time before the requested parental leave begins. Under extraordinary circumstances, the Superintendent may delay a teacher who has withdrawn a request for parental leave from returning to their position for up to four (4) weeks in order for the district to make necessary adjustments to staffing (i.e., bumping, initiation of a RIF, reassignment, etc.).
3. Parental leave may begin any time between the birth of a child and the child's first birthday. In the case of adoption, parental leave may begin upon receipt of custody of a child prior to his/her 6th birthday. Upon request by the teacher, sick leave may be used prior to parental leave following the birth or adoption of a child if illness or disability requires.
4. Upon request of the teacher, his/her leave shall be extended for one (1) additional school year. At the end of this one (1) additional school year, and upon request of the teacher, his/her leave shall be extended for one (1) more additional school year.
5. Teachers on parental leave shall be notified by the Superintendent, in writing, of the expiration of the leave on or before March 1st and the necessity of notifying the District, in writing, of his/her plans to return. Written notice by the teacher shall occur no later than March 15th unless the delivery or adoption occurred subsequent to March 1st, in which case the teacher shall have until July 1st to notify the Superintendent of his/her intention for the coming school year. If notification is not received on the date specified, it will be assumed that the individual on leave does not wish to return to employment with the Board. If notification is received on time, the teacher shall be placed in a teaching position as of the beginning of the coming school year.
6. Upon return from approved parental leave, a teacher shall be entitled to reinstatement to a substantially equivalent position for which the teacher holds a valid unexpired certificate/license.
7. The condition of maternity, pregnancy, miscarriage, abortion,

childbirth and recovery there from or adoption shall not be grounds for the termination, nonrenewal, or failure to issue any limited or continuing contract, whether for the regular teaching duties, supplemental duties or administrative duties.

8. Parental leave shall also be given to a teacher who requests it in order to care for his/her parent(s).
9. Consecutive parental leaves shall not exceed four (4) consecutive years. If a teacher has utilized parental leave for four (4) consecutive years, he/she must be in active pay status for a minimum of 120 days before parental leave can again be granted. A parental leave of 120 days or more shall be considered to be a year of parental leave for the purposes of this Section.

E. Sabbatical Leave

1. Subject to the provision of Section 3319.131 of the Ohio Revised Code, sabbatical leave for study and research may be granted by the Board to teachers who have completed at least five (5) years of service in Brecksville-Broadview Heights City School District.
2. The Board shall grant leave to no more than five percent (5%) of the teachers at any one time.
3. Sabbatical leave may not be granted to a teacher more often than once every five (5) years of service, nor may such leave be granted a second time to the same teacher when other teachers have filed a request for such leave.
4. A teacher who is granted sabbatical leave will be required to return to the staff of Brecksville-Broadview Heights City Schools for at least one (1) year. If he/she does not return for one year, he/she shall be required to refund the Board monies given for such leave. This restriction shall not apply to teachers with twenty-five (25) years or more of teaching in Ohio schools.
5. A sabbatical leave may be granted for one nine (9) week period, one (1) semester, one (1) full year, or for the last semester of one (1) year and the first semester of the following year. Each teacher on leave shall receive a salary equal to the difference between his/her expected salary and that of his/her substitute,

assuming such expected salary is greater than that paid to the substitute. It is understood that in computing the substitute's salary there shall be added the cost of the normal fringe benefits to be paid to the substitute. Teaching credit shall be given the same as if the teacher on sabbatical was teaching in the system. The teacher on sabbatical may continue at his/her cost all fringe benefits at the group rate.

6. Application for sabbatical leave shall be made in writing to the Superintendent not later than March 15th or October 15th preceding the school term within which the leave is desired. The application shall include a plan for spending the leave in a manner calculated to contribute to the professional effectiveness of the applicant and the best interests of the school system.

F. Assault Leave

1. If, in the course of employment, a teacher is assaulted by a student/adult, resulting in physical injury to the teacher which is severe enough to preclude the satisfactory performance of regular teaching duties, the teacher shall be granted leave for the period of incapacitation, except that the length of the leave shall be limited to five (5) days unless a doctor certifies that the incapacity will continue beyond such time. This assault leave shall not be charged against any other type of leave. Paid assault leave will be capped at ninety (90) working days except in extraordinary circumstances in which the cap can be extended by mutual agreement of the Superintendent and B.E.A. President.
2. The teacher shall not qualify for assault leave except upon submission of an application justifying the granting of assault leave. If medical attention is required, the employee shall furnish a certificate from the attending physician stating the nature of the disability and its expected duration.
3. Payment of assault leave shall be at the regular rate of pay (teacher's regular pay plus an extra-duty, supplemental and/or supplementary pay) in effect for such teacher at the time of such assault, or at the rate which the teacher may become eligible in accordance with the Ohio Revised Code, less any compensation to which the teacher is entitled under the Workers' Compensation Act of Ohio.
4. A teacher who has been physically assaulted in connection with

the performance of a professional assignment of this Board shall immediately give verbal notice to the building principal. In extraordinary circumstances where immediate notice is not possible, the teacher must give verbal notice no later than twenty-four (24) hours after the assault has occurred, unless they are unable to do so due to the extreme nature of their injuries. In addition, the teacher shall file a written report signed by the teacher within two (2) working days of the assault.

5. If court action results, said teacher shall be granted leave of his/her professional duties with no loss of pay for necessary time in court.
6. A teacher temporarily disabled as a result of a physical assault shall be returned to the same position held at the time of the incident, or shall be transferred to the first available teaching position carrying equivalent pay and equivalent professional duties for which the teacher is certificated/licensed, if the teacher so desires. Any student who assaults a teacher shall not be assigned to that teacher again unless there is no other teacher who teaches that course/grade.

G. Jury Duty

1. A teacher summoned for jury duty shall immediately notify his/her principal.
2. When it is necessary for a teacher to be absent from teaching duties due to a jury summons, the teacher shall not lose any salary.

H. Other Leaves

1. Upon the written request of a teacher, the Board may grant a leave of absence for a period of no more than two (2) consecutive school years for educational or professional or other purposes, and shall grant such leave where illness or other disability is the reason for the request. Upon subsequent request, such leave may be renewed by the Board. Without request, a Board may grant similar leave of absence and renewals thereof to any teacher because of physical or mental disability, but such teacher may have a hearing on such unrequested leave of absence or its renewals.
2. Upon successful completion of a one-year leave of absence for full-time post- graduate work aimed toward an advanced

degree and, in the opinion of the Superintendent, directly related to his/her teaching responsibilities, a teacher shall receive a one-year increment. Under no situation shall a teacher receive more than one (1) increment of this type for any one (1) post-graduate degree.

3. Leave may be requested where illness or disability relates to either parent and where there are no accumulated sick leave days available or applicable under the provisions of the sick leave policy.

I. Unpaid Leave of Absence

If any teacher is absent for any approved reason other than those specified in Section 20 of this Agreement, a deduction from his/her salary will be made on the basis of the number of days assigned for that school year.

J. Leave Pursuant to Summons or Subpoena

1. Any teacher who is summoned or subpoenaed for a job-related issue shall be granted leave with no loss of pay or other emoluments for days missed by reasons of the summons or subpoena. A summons or subpoena issued because of a student's custody issue is considered to be job-related.
2. A teacher who is subpoenaed to appear in court as a witness in a proceeding in the teacher's capacity as an employee of the Board shall be paid at her/his regular rate without use of personal days or sick days.
3. Personal leave must be utilized for a summons or subpoena issued because of a non-job related issue. If the teacher has exhausted his/her personal leave, and is summoned or subpoenaed for something that is not job-related, leave pursuant to summons or subpoena may be used in order to comply with the subpoena or summons.

K. Unpaid Leave Pursuant to Public Service

Any teacher who is elected to a full-time Local, State, or Federal public office, or enlists full-time in the U.S. Armed Forces, shall be granted an unpaid leave of absence for up to eight (8) years. Such leave shall be granted in one (1) year intervals up to a total of eight (8) years. The request for each one (1) year leave interval shall be

submitted around the time the teacher has reasonable knowledge of the need for an additional year's leave. Such request shall be approved by the Board. Upon return from approved leave, a teacher shall be entitled to reinstatement to a substantially equivalent position for which the teacher holds a valid unexpired certificate/license.

SECTION 22 – COMMUNICABLE DISEASES

A. Protection of Individuals

The Board recognizes that communicable diseases are significant medical and social problems. The Board desires to protect the rights of individual students or teachers who may be infected with communicable diseases as well as to protect noninfected students, staff, and the public.

B. Definitions

The purpose of these procedures is to describe the method of handling the issues raised when a teacher is potentially infectious with a communicable disease. A communicable disease is defined as a long-term disease capable of being transmitted from one person to another and that is dangerous to the public. Communicable diseases include, but are not limited to, tuberculosis, hepatitis, and Acquired Immune Deficiency Syndrome (AIDS). For the purpose of this policy, AIDS includes Acquired Immune Deficiency Syndrome, AIDS-related complex or the presence of Human Immunodeficiency Virus (HIV).

C. No Mass Testing

There will be no mass testing to determine if a teacher is infected with a communicable disease.

D. Reporting of Diagnosis

Any teacher who is diagnosed as having a communicable disease is required to report ~~such diagnosis~~ **the diagnosis of having a communicable disease** to the Superintendent, **but he/she is not required to share the disease diagnosis unless required by law to do so, or unless required to address health and safety concerns in the building.**

E. Continuation of Normal Work

All teachers shall be required to carry out their normal duties and

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responsibilities to an infected student or work with an infected teacher where the determination has been made **by the teacher or student's physician that it is safe** to permit the infected individual to remain in the school setting.

F. Decisions on Case-by-Case Basis

Decisions about each teacher with a communicable disease are to be made on a case-by- case basis.

G. Submission to Medical Evaluation

When there is reason to believe that a teacher has a communicable disease, then he/she is required to submit to a medical evaluation by **his or her own physician**, a public health physician and/or a physician or medical facility selected by the Board, at Board expense. "Reason to believe" shall be defined as:

1. The teacher discloses his/her diagnosis;
2. Knowledge that a member of the teacher's household has a communicable disease;
3. Evidence of impairment in job performance;
4. Other information brought to the attention of the Board. Said information shall promptly be brought to the attention of the teacher.

H. No Loss of Salary, Benefits or Other Emoluments

If there is reason to believe that a teacher has a communicable disease, he/she will be permitted to remain in his/her regular assignment or placed in an alternate assignment with no loss of salary, benefits or other emoluments.

~~I. Evaluation Team~~

~~When there is reason to believe that a teacher has a communicable disease, an evaluation team shall convene within seven (7) calendar days of the teacher/student identification.~~

- ~~1. The evaluation team shall be comprised of: the teacher's physician, the school physician, and a physician specializing in infectious diseases.~~
- ~~2. The school physician shall be chairperson of the evaluation team.~~

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J. Written Report of Evaluation Team

~~The evaluation team shall review the teacher's diagnosis, treatment, and prognosis and shall submit a written report of its finding and determinations to the Superintendent within five (5) calendar days from when the evaluation team convened.~~

K. Teacher's Status/Assignment

The Superintendent will make a decision based on medical information concerning a teacher's status/assignment within two (2) calendar days after receiving the report from ~~the evaluation team~~ **the member's personal physician or from the physician completing the medical evaluation.** A teacher may be (1) kept in his/her original assignment, (2) placed in a different assignment with no loss of salary, benefits or other emoluments, (3) requested to utilize sick leave and would be entitled to unpaid leave of absence for up to two (2) years after paid sick leave has expired, (4) entitled to apply for disability retirement benefits under S.T.R.S. or (5) placed on a leave of absence under O.R.C. 3319.13. A teacher shall not be nonrenewed, terminated, or otherwise separated from employment due to having been diagnosed as having a communicable disease.

L. Confidentiality

Information about the identity and condition of a teacher infected with a communicable disease shall not be disclosed ~~by the evaluation team or~~ by the Superintendent to anyone other than the members of the Board, administrators in the buildings in which the teacher is assigned, **teachers or the parents of students who may have been exposed,** and the school nurse, and any other persons to whom disclosure is recommended by the diagnosing physician ~~the evaluation team.~~ **All persons who receive the information will be required to observe complete confidentiality as to such information.**

M. Monitoring of Medical Condition

~~The evaluation team shall maintain an active role in monitoring the teacher's medical condition.~~ The teacher's physician shall work with the teacher regarding any change in health status and shall notify the ~~school physician~~ **Superintendent** of any change. If any new information is brought to the attention of the ~~school physician~~ **Superintendent**, the procedures outlined above shall be followed.

N. Confidentiality and Students

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Those teachers ~~to whom disclosure is recommended by the evaluation team~~ **who have come in contact with infected students** shall be notified of the identity and other relevant information regarding students identified as having a communicable disease. Teachers will observe complete confidentiality as to such information.

O. Implementation and Enforcement of Board Policies

The administration will implement and enforce Board policies and the Ohio Revised Code in dealing with student communicable diseases.

P. **Nothing in this section shall be construed to waive physician-patient privilege provided by ORC 2317.02.**

SECTION 25 – MENTORING PROGRAM

A. Overview

An entry-year/mentoring program is designed to help teachers who are either Resident Educators, new to the Brecksville-Broadview Heights School District, or who hold an Alternative Educator License. Mentors will consult and assist teachers new to the district but they shall not evaluate them. A teacher who volunteers and is selected to be a mentor shall be compensated and shall receive release time as stated below. Additionally, a mentor may be required to attend training sessions during the regular school day and may also be required to attend training sessions/meetings outside of the regular school day to a maximum of eight (8) hours per school year. In order for a teacher to be the mentor of an entry-year teacher (i.e., a teacher who holds a provisional license), the teacher must have successfully completed ODE required Resident Educator training.

B. Resident Educator Mentoring Program

1. Qualifications for Resident Educator Mentors/Facilitators

- a. Resident Educator Mentors work with Resident Educators in years one (1) and two (2) of the Resident Educator Program. Resident Educator Mentors must have at least five (5) years of teaching experience.
- b. Resident Educator Mentors must be trained to serve as

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a mentor through the ODE Instructional Mentoring (IM) and Resident Educator (1-RE) programs, and ODE facilitator training.

Resident Educator Mentors required to complete facilitator training will be provided with either release time or compensation if scheduled outside of the teacher workday for the completion of facilitator training. If training is outside the teacher workday, teachers will submit a timeslip with evidence of completion of the course with compensation of one hundred dollars (\$100).

- c. Resident Educator Mentors must maintain a valid teaching certificate/license.
- d. In order to be selected as a Resident Educator Mentor, the teacher must demonstrate the ability to work cooperatively and effectively with colleagues. The teacher also regularly demonstrates extensive knowledge of best practices for classroom management and instructional techniques.
- ~~e. Resident Educator Facilitators work with Resident Educators in year three (3) and year four (4), if necessary, of the Resident Educator Program. Facilitators must successfully complete ODE Facilitation Training.~~

2. Selection Process

- a. Teachers interested in serving as a mentor or facilitator to a Resident Educator for the following school year shall notify his/her principal at the end of the current school year the Program Coordinator (Director of Human Resources) by the posting date on the yearly supplemental job posting.
- b. Assignments are for a one-year period and are by the mutual agreement of the Superintendent and the B.E.A. President.

3. Responsibilities

- a. Resident Educator Mentors/Facilitators shall carry out the Resident Educator Program in conjunction with the

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Resident Educator rules, regulations and guidelines as developed by the ODE.

- b. Resident Educator Mentors shall attend scheduled training sessions/meetings unless notification has been given and approved by the Program Coordinator.
- c. The Mentor shall meet with the mentee for three (3) hours prior to the start of the school year. This meeting date and time shall be mutually determined by the mentor and the mentee.
- d. Release time, during the student contact day, will be provided for observation and conferencing purposes as approved by the Program Coordinator and provided to the Resident Educator Mentor and the Resident Educator. The Resident Educator Mentor will notify the building Principal(s) of the date and time they plan to meet with the Resident Educator no less than three (3) workdays prior to the date so that substitute arrangements can be made.
- e. Resident Educator Mentors will use the Resident Educator Program formative assessment tools (e.g., Collaborative Log, Ohio Standards for the Teaching Profession Reflection Tool, Goal Setting Agreement, etc.) and protocols to support the Resident Educator.
- f. Assessments and evaluations of Resident Educators shall not be performed by Resident Educator Mentors. Resident Educator Mentors are expected to maintain confidentiality as they provide developmental support and critical feedback to Resident Educators.

4. Compensation

- a. Resident Educator Mentors for 1st year and 2nd year mentees will receive .040 of the BA base salary per year and shall receive this compensation in a single stipend, the first pay in June.
 - i. Ideally, each Resident Educator Mentor shall not have more than one (1) mentee, however, when this is not possible, a member may be given a second mentee but they can never have more than two (2) mentees.

- ii. Compensation for two (2) mentees is .060 of the base salary.

~~b. Facilitators for 3rd year Resident Educators will receive .005 of the BA base salary per year and shall receive this compensation in a single stipend, the first pay in June.~~

5. Release Time

- a. Resident Educator Mentors shall be given 16 hours of release time to plan, observe, and meet with the mentee.
- ~~b. Resident Educator Facilitators shall be given 1.5 hours of release time to plan and videotape with each assigned mentee.~~
- c. Resident Educator Mentees in 1st and 2nd year of RESA shall receive up to 8 hours of release time to work with their mentors and up to 8 hours of release time for preparation and submission of RESA materials **each year.**
- ~~d. Resident Educator Mentees in their 3rd year in RESA will receive up to 1.5 hours of release time to meet with their Facilitator and up to 8 hours of release time for the preparation and submission of RESA materials.~~
- ~~e. Resident Educators in their 4th year who still require a Facilitator will receive up to 1.5 hours of release time to meet with their Facilitator. All Resident Educators in year four (4) will receive up to 8 hours of release time for the preparation and submission of RESA materials.~~
- f. Resident Educator Mentees will be required to meet up to three hours with the Program Coordinator after the first student day.

C. New to the District Mentoring Program (Non-Resident Educator or Educator with Alternative License)

The New to District Mentoring Program is for educators new to the district who have a professional license, permanent certificate, or alternative license. Teachers in their first year at BBHCSD will be provided coaching, mentoring, and guidance as they transition to a BBHCSD employee.

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1. Qualifications for Mentors

- a. The New to District Mentor must have at least five (5) years teaching experience.
- b. A New to District Mentor must have demonstrated the ability to work cooperatively and effectively with the BEA members and have extensive knowledge of a variety of classroom management and instructional techniques.
- c. In order to be selected as a New to District Mentor, the teacher must demonstrate the ability to work cooperatively and effectively with colleagues. The teacher also regularly demonstrates extensive knowledge of best practices for classroom management and instructional techniques.

2. Selection Process

- a. Teachers interested in serving as a New to District Mentor **for the following school year shall notify his/her principal at the end of the current school year** ~~the Program Coordinator (Director of Human Resources) by the posting date on the yearly supplemental job posting.~~
- b. Assignments are for a one-year period and are by the mutual agreement of the Superintendent and the B.E.A. President.

3. Responsibilities

- a. New to District Mentors shall carry out the following obligations:
 - i. Design and coordinate yearly goals in collaboration with mentee.
 - ii. Meet monthly with mentee.
 - iii. Record dates and times of monthly meetings and submit at the end of the year to Program Coordinator.
- b. The New to District Mentor shall attend all district meetings scheduled for the year unless notification has been given and approved by the Program Coordinator.

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- c. The New to District Mentor shall meet with the mentee for three (3) hours prior to the start of the school year. This meeting date and time shall be mutually determined by the mentor and the mentee.
- d. Release time, during the student contact day, will be provided for observation and conferencing purposes as approved by the Program Coordinator and provided to the New to District Mentor and the New to District Mentee. The New to District Mentor will notify the building Principal(s) of the date and time they plan to meet with the New to District Mentee no less than three (3) workdays prior to the date so that substitute arrangements can be made.
- e. Assessments and evaluations of New to District Educators shall not be performed by their mentors. New to District Mentors are expected to maintain confidentiality as they provide developmental support and critical feedback to their mentees.

4. Compensation

- a. New to District Mentors will receive .020 of the BA base salary per year if their mentee has one or more years of service credit. Mentors will receive this compensation in a single stipend, the first pay in June. Each additional New to District Mentee will be compensated at .0125 of BA base salary.
- b. New to District Mentors will receive .040 of the BA base salary per year if their mentee has zero years of STRS service credit (i.e. Exempt Teacher) or is hired under an Alternative License. Mentors will receive this compensation in a single stipend, the first pay in June. Each additional New to District Mentee will be compensated at .0125 of BA base salary.

5. Release Time

- a. The New to District Mentor shall be given release time, at his/her determination, up to a maximum of twelve (12) hours per school year. When the mentor determines release time is needed, he/she shall give at least three (3) days advance notice to the building principal so that

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substitute arrangements can be made.

- b. Experienced teachers new to the District will be given release time up to a maximum of six (6) hours per school year to consult with his/her mentor.

D. Special Exceptions

1. Former Long-Term Substitutes

- a. A former long-term substitute with less than one semester in-District experience or a former long-term substitute from another district who receives a regular teaching contract will be treated as an entry-year teacher.
- b. A former long-term substitute with at least one semester in-District experience who receives a regular teaching contract and who has a teaching certificate or professional license may be provided a mentor in his/her first year of teaching, at the administration's discretion.

E. District Entry-Year/Lead Mentor Coordinator

1. A Lead Mentor/Coordinator, who must be a teacher, shall be selected by the mutual agreement of the Superintendent and the B.E.A. President.
2. The Lead Mentor/Coordinator shall collaboratively work with the Program Director in the design of the district mentoring programs, and the recruitment, selection, assignment and provisions for the training of mentor and entry-year teachers.
3. The Lead Mentor/Coordinator shall be paid .0007 of the BA base salary per hour for time dealing with the RESA and Non-RESA mentoring programs outside of his/her regular instructional/duty periods. This includes district meetings with mentors and mentees. Total hours per school year are limited to forty (40) unless additional hours are approved by the Program Director.

F. Entry Year Teachers Who Do Not Obtain Licensure

1. ~~Entry year teachers must successfully complete the entry year program within two (2) school years. The entry year teacher must produce a professional license or letter from the Ohio~~

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Department of Education verifying the teacher has met the licensure requirements. This must be produced on or before August 1st following completion of the entry year program. An entry year teacher who has failed to successfully complete the entry year program within two (2) years will no longer be employed by the Board.

2. Entry year teachers who do not successfully complete the entry year program within the given timeframe will not be entitled to any rights or procedures under this Agreement or applicable state law, including rights or procedures governing nonrenewal or termination or contract. This section expressly supersedes O.R.C. 3319.11, 3319.111, or 3319.16. This section only applies to those teachers who have not satisfied their licensure requirements and does not impact the teacher or Board's rights under this Agreement with respect to nonrenewal or termination of contract for reasons unrelated to failure to obtain licensure.

Upon submission of a professional license or verification of completion of licensure requirements, the teacher will no longer be subject to the entry year mentoring program. Any teacher who has not completed the entry year program within the first year will be expected to continue to participate in that program during the teacher's second year as an entry year teacher.

SECTION 27 – PERSONNEL FILES

A. Location of File

The Board agrees to maintain one (1) official personnel file which will be located at the Board of Education office building or available electronically.

B. Availability for Inspection

All materials placed in the teacher's personnel file after initial employment, other than confidential letters of reference, shall be available for inspection by that teacher during regular business hours of the Board of Education office if in paper form, or available electronically.

C. File Inspection Request

If possible, said file inspection shall take place within one (1) calendar day of the request to the Superintendent, but no later than five (5) calendar days (excluding Saturdays, Sundays, and holidays) of the request unless mutually extended by the Superintendent/designee and

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~~the teacher.~~

~~D. Accompanied by Representative~~

~~Any teacher who elects to review material in his/her file may be accompanied by a representative of his/her choice.~~

E. Material Dated

All material placed in a teacher's personnel file shall be dated.

F. Initialing Contents

The initialing and/or signing of any material by the teacher, including any and all observation and evaluation forms, is merely an acknowledgment of having seen the material and does not necessarily indicate agreement or disagreement.

G. Anonymous Source

No material shall be placed in the teacher's file that comes from an anonymous source.

H. Parental Complaints

Any adverse material and/or parental complaints shall not become a part of the official personnel file or be used in disciplinary decisions unless shared with the teacher. **The bargaining unit member shall sign the adverse material and/or parental complaint prior to the district placing the material in the personnel file, with the signature indicating he/she has seen the complaint. The signature does not indicate that the member is in agreement with the complaint. If a member refuses to sign, that shall be noted by the administrator; refusal does not prevent a material and/or complaint from being placed in the file.**

I. Adverse Material

Each teacher shall be provided with copies of any adverse materials within ten (10) calendar days after receipt and before placement in the file. The teacher shall have the opportunity to reply in writing to the adverse material within ten (10) days after receipt of a copy of such material and the reply shall be placed in his/her file along with the adverse material. Any adverse material, other than those related to charges of child abuse **or unless required by law to stay in the personnel file**, shall be removed after ~~nine (9)~~ **five (5)** years at the teacher's request if the actions or behaviors noted in the adverse

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material have not recurred within the ~~nine (9)~~ **five (5)** year period.

J. Complaint Procedure

Complaints against any teacher shall be handled through the established chain of command whenever possible. A complaint is defined as a written or verbal concern expressed to an administrator regarding a situation that occurred. The complaint shall be referred first to the teacher; if unresolved, then to the building principal. Except in the case of alleged criminal activity, if the complainant refuses to contact the teacher, the person receiving the complaint shall inform the teacher of the complaint within five (5) school days. Anonymous complaints shall not serve as the basis for any personnel decisions.

K. Building Administrator Working File

In addition to the one official personnel file, ~~located at the Board of Education office building,~~ a building administrator may maintain a working file that contains documentation relevant to a teacher's performance. At the end of each school year in which the teacher is formally evaluated, the information contained in the working file will either be placed in the official personnel file or expunged. This does not preclude a building administrator from maintaining an extra copy of documents maintained in a teacher's official personnel file.

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SECTION 19 – SPECIAL EDUCATION

A. Inclusive/Collaborative Team Notification

Inclusive/collaborative programs should be designed to meet individual student needs and, therefore, need to be flexible from year to year. Staff will be notified if they are to be part of any inclusion/collaborative team for the following school year, if possible.

B. Volunteers

Regular education teachers who volunteer for inclusive/collaborative programs will receive priority for participation.

C. Training

Teachers in need of training (as requested by either the teacher or administrator) will be provided such by the district (in house or otherwise). Every effort will be made to provide this training before the student is in his/her classroom. Training, if needed, will also be available during the first year a teacher has included students in his/her classroom.

D. Class Size

Efforts will be made to reduce class size for regular classroom teachers involved in inclusive programs which require additional planning for special education students.

E. Common Planning Time

Common planning time, where it is possible, for regular and intervention specialists who are involved in these programs needs to be figured into the building master schedule.

F. Planning Time

As incentives for participation in these programs, additional collaboration/planning time or compensation for planning required outside the school day will be offered to staff, which may take the form of the following:

1. Planning time beyond the school day

- a. Participation is limited to those teachers who work together in a collaborative manner within the regular classroom.
 - b. “Paid planning hours” can be applied for, through the building principal by regular teachers, and/or intervention specialists, and/or related service personnel who require time to collaborate and plan together outside of the school day. Paid planning time may include before the school day, after the school day, or during lunch. Compensatory time may be applied for in lieu of payment by intervention specialists during the regular school day for times they are not responsible for students (i.e., assemblies, field trips, parties, etc.).
 - c. Paid planning hours are limited to fifty (50) hours per semester and shall be paid at the rate of .0005 of the BA base salary per hour.
 - d. For circumstances that occur outside the above parameters, the building principal has the discretion to make an exception.
2. Planning time, where possible, as additional release time (examples of release time options would be special duty, homeroom, study halls, etc.).

G. IEP Writing

At the start of the school year, the principal and special education staff will develop schedules for IEP writing days. If there are conflicts with a scheduled date(s), the teacher and building principal will mutually reschedule the date(s) in conflict.

Intervention specialists, ~~and~~ developmental pre-school teachers, ~~and~~ school psychologists will be assigned, by the Assistant Superintendent Director of Human Resources, one IEP writing workday for every four (4) IEPs on a case manager’s caseload. Intervention specialists, ~~and~~ developmental pre-school teachers, ~~and~~ school psychologists will be assigned, by the Assistant Superintendent Director of Human Resources, one-half IEP writing workday for every two IEPs after their increment of four IEPs on a case manager’s caseload.

These days must be utilized in half day or full-day increments. (~~except as stated above for two IEPs after an increment of four~~). ~~IEP writing days may will occur in district, at an off-site location, and will not be available on the following days:~~

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The writing of IEPs on release days must occur in District but does not need to occur at the bargaining unit member's assigned building. If a bargaining unit member chooses not to utilize any or all of the assigned IEP release days, he/she will be paid a stipend in the amount of the district daily substitute teacher rate (non-retired BBHCSD teacher) for each unused day. Bargaining unit members who elect not to use any or all of the available release days, and instead elect to be compensated at the substitute teacher rate, will submit a timeslip to his or her Principal on or before the last teacher workday in order to be compensated upon the completion of any and all allowable days under this section.

In the event that an IEP is added to an intervention specialist's caseload in a manner that cannot be resolved under Section 19(G) by the end of the school year, the intervention specialist shall be compensated at .002 of the BA base salary for the IEP. For example, when an Intervention Specialist with four (4) IEPs is assigned one (1) additional student, but not two (2), they are entitled to payment no later than the second pay in July. *(Note: moved from below)*

- ~~the first or last day of the school year;~~
- ~~any non-student school calendar day;~~
- ~~the day before or after holidays and long weekends;~~
- ~~Monday or Fridays during the last nine weeks of school year;~~
- ~~during District wide professional development days including waiver days and in-service days.~~

1. Autism Scholarship Program

- a. For the evaluation responsibilities created by the Peterson and Autism Scholarship Programs in non-public schools within the Brecksville-Broadview Heights City School District, the obligation to perform such evaluations will be rotated through the K-12 school psychologists and speech language pathologists [unless all out of district testing is assigned to one SLP and/or school psychologist, in which case the compensation below (\$180 and/or \$75) would not be paid] within the District according to full-time status (e.g., half-time psychologists/SLPs would be assigned half the cases of a full-time

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b. An exemption of up to six (6) hours of parent-teacher conferences in exchange for time spent by the SLP participating in work inherent to their position. A log describing the six (6) hours of work outside the workday shall be submitted to the Pupil Services Department.

a. Payment for the extended time shall be made over the course of twenty-six (26) pays (or twenty-four (24) pays if the District moves to that schedule).

b. The speech/language pathologist will not use planning and conference time to deliver instructional services to his/her students.

c. *(Note: NOT A. The parties do not have a TA on this paragraph regarding SLPs.)*

2. Additionally, the speech/language pathologist will be provided with two full days or four half days of release time for the purpose of writing and maintaining a student's IEP. At the start of the school year, SLPs in collaboration with their supervisor will develop schedules for IEP writing days. If there are conflicts with a scheduled date(s), the SLP and building principal will mutually re-schedule the date in conflict. The speech/language pathologist will be responsible for reporting the absence through Renhill as a "professional day". Release time will not be available. Such days shall occur in district.

The writing of IEPs on release days must occur in District but does not need to occur at the bargaining unit member's assigned building. If an SLP chooses not to utilize any or all of the assigned IEP release days, he/she will be paid a stipend in the amount of the district daily substitute teacher rate (non-retired BBHCSD teacher) for each unused day. SLPs who elect not to use any or all of the available release days, and instead elect to be compensated at the substitute teacher rate, will submit a timeslip on or before the last teacher workday to his or her Principal in order to be compensated upon the completion of any and all allowable days under this section.

• the first or last day of the school year;

• any non-student school calendar day;

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psychologist/SLP (unless a half-time psychologist chooses to opt in for the full cycle). **PreK school psychologists and PreK SLPs may voluntarily opt into the rotation.**

- b. Report writing for the evaluations conducted for non-public schools will be done outside the work day and be compensated One Hundred Eighty Dollars (\$180.00) per student that requires a full report **by school psychologist or SLP, or Seventy-Five Dollars (\$75) per report completed by the SLP as a related service.** Compensation for evaluations will only occur for fully-completed evaluation team reports and not for any student where the District and parent have determined that the reevaluation is not necessary (a “waiver”). Designated hours shall be submitted using the adopted time sheet.

2. ~~In the event that an IEP is added to an intervention specialist's caseload in a manner that cannot be resolved under Section 19(G) by the end of the school year, the intervention specialist shall be compensated at .002 of the BA base salary for the IEP. For example, when an Intervention Specialist with four (4) IEPs is assigned one (1) additional student, but not two (2), they are entitled to payment no later than the second pay in July. (Note: Board proposes to move this to under G above (IEP writing section).~~

H. Multi-Factored Evaluation/Evaluation Team Report (ETR)

Any teacher involved in **an ETR multi-factored evaluation** (initial or triennial review) may be released one-half (½) day a month for testing and observation of the student(s) as deemed necessary by the building administrator.

I. Speech/Language Pathologists

1. Each speech/language pathologist shall be given NEOEA Day and President's Day as an extended time day in order to write IEPs.
 - a. If a speech/language pathologist wants to attend an NEOEA Day activity, he/she shall consult with the Director of Pupil Services in order to determine a different extended time day which must be scheduled on a day that is not part of the school calendar.

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• the day before or after holidays and long weekends;

• Monday or Fridays during the last nine weeks of school year;

• during District-wide professional development days including waiver days and in-service days.

J. IEP Meetings

1. Each teacher who attends an IEP meeting for non-public students outside the teacher day shall be compensated at the rate of .00065 of the BA base salary per hour for each hour of meeting attendance.
2. Teachers who are required to attend an out-of-district (non-public student) IEP meeting during their planning period will be compensated at a rate of .00065 of the BA base salary per full planning period, prorated for partial periods.

L. Special Education Case Loads

1. Each intervention Specialist will receive with his/her student roster for the new school year a designation of where the teacher's assignment falls on the Office for Exceptional Children (OEC) case load ratios chart.
2. In the event the teacher's case load ratio exceeds the OEC requirements, the teacher will request a meeting with the building principal to discuss alternative solutions. The Director of Pupil Services and B.E.A. President may also participate in this meeting. The teacher will also provide input into any waiver request and will receive a copy of a waiver request filed with OEC.

M. School Psychologist

An exemption of up to six (6) hours of parent-teacher conferences in exchange for time spent by a school psychologist participating in work inherent to their position.

A log describing the six (6) hours of work outside the workday shall be submitted to the Pupil Services Department.

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SECTION 15 – WORKING CONDITIONS
IN EFFECT FOR THE 2022-2023 SCHOOL YEAR AND THEREAFTER

A. Length of the Teacher's Day

1. The teacher workday shall be as follows:

- a. ~~For the 2022-2023 school year and thereafter,~~ All teachers' workdays will be no greater than seven hours and fifty minutes.

- (1) 7:30 a.m. to 3:20 p.m. – High School
- (2) 7:30 a.m. to 3:20 p.m. – Middle School
- (3) 8:10 a.m. to 4:00 p.m. – Elementary Schools K-4 5
- (4) 7:30 a.m. to 3:20 p.m. – Stepping Stone

Start and end time(s) may be shifted by the administration for ten minutes earlier or later than the above, except the elementary teacher workday will not go past 4 p.m.

- d. *(Note: NO TA. The parties do not have a TA on this paragraph regarding administratively called meetings.)*

- b. Four hundred (400) minutes of planning time per week for elementary teachers during the student day.

- c. ~~Four Hundred (400) minutes of planning time per week for middle school and high school teachers during the student day.~~

- d. If a staff member is unable to attend a scheduled PLC meeting, an equivalent alternative will be developed between the teacher and his/her supervisor.

2. School Year

- a. The parties acknowledge that from time to time certain

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circumstances arise whereby it may be prudent to adjust the starting and ending times of a teacher workday.

- b. When such circumstances arise, and upon the mutual agreement between the teacher and the building administrator, and with prior written approval of the teacher's building principal, the starting and ending time of a teacher's workday may be adjusted to times which are different from the teacher workday consistent with the parameter that the adjusted workday or make-up day time arrangement must still conform with the seven hour and fifty minute workday requirement for teachers.

B. Meetings *(Note: Moved From Section Below and Renumbered)*

1. Whenever possible under all existing circumstances, building meetings will be on an "as required" basis with an advanced agenda and scheduled at convenient times. For purposes of this section, teachers teaching in more than one (1) building shall be assigned to only one (1) building's meetings.
2. When any teacher attends a meeting during his/her guaranteed thirty (30) minute lunch, he/she shall be compensated for this time at his/her pro-rated per diem rate if the meeting was requested by the building administrator.

3. *(Note: NO TA. The parties do not have a TA on this paragraph regarding administratively called meetings.)*

4. The Administration will notify teachers in advance of any meetings that will be recorded or broadcast in part or in full.

5. *(Note: NO TA. The parties do not have a TA on this paragraph regarding administratively called meetings.)*

C. Professional Learning Community *(Note: Moved from Section 16 and Renumbered)*

1. For middle and high school, sixty (60) minutes per week, divided into a minimum of thirty (30) minute blocks, will be dedicated to the work of professional learning communities ("PLC"). The collaboration of teams shall cover PLC work, the continuous improvement plans for the building ("CIP"), and the

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strategic (or long-range plan) of the district. PLC time shall not be considered planning time under the terms of this Agreement. **PLC meetings may meet before the start of the student day, after the student day, or within the student day during common planning/conference time at the discretion of members of the PLC.**

2. **At the Pre-K-5 level, the Administration may schedule one administratively directed grade-level or content-level meetings once per week for no greater than 50 minutes, with the agenda prepared in collaboration with the PLC Leader. In addition, thirty (30) minutes of administratively directed PLC time within the teacher day can be used once per month when needed.**

D. Lunch Time

All teachers shall be granted a minimum thirty (30) minute lunch period without assigned responsibilities. The pass time between bells shall not be included in the calculations of a teacher's lunch period.

E. School Year

1. The school year shall consist of one hundred eighty-six (186) days.
 - a. The first two teacher days of the school calendar shall be for building and District meetings and teacher work; however, the meetings will not exceed the equivalent of one (1) day.
 - b. The last day of the first and third quarters shall be one-half ($\frac{1}{2}$) day for professional development (3.5 hours) and one-half ($\frac{1}{2}$) day for teacher work.
 - c. The last day of each semester shall be one-half ($\frac{1}{2}$) teacher work day and one-half ($\frac{1}{2}$) unassigned day.
 - d. The Wednesday before Thanksgiving shall be release time in exchange for the two (2) parent teacher conferences, **and for school psychologists and SLPs, in exchange for the six (6) hours of logged work in Section 19, I and Section 19, M.**
2. Teachers new to the district are required to attend a two-day new teacher orientation.

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3. There shall be one (1) student early release day on the last student day of the school calendar for teacher work.
4. Students enrolled in the Developmental Preschool Program shall have a delayed start to the school year for the first three (3) regularly scheduled student days and shall be released early from attending the last four (4) regularly scheduled student days.
5. There shall be a Teaching and Learning Committee at each building that is comprised of teachers and at least one (1) administrator. Additionally, there shall be a District Teaching and Learning Committee comprised equally of administrators and teachers. **B.E.A. members shall be chosen by the B.E.A. president.** One (1) person from each Building Teaching and Learning Committee shall serve on the District Teaching and Learning Committee. **The building-level and/or the District Teaching and Learning Committee shall provide recommendations for planning professional development, and shall meet once per quarter.**
6. In the event that calamity days are to be made up if the amount used in a school year is in excess of five (5), a committee will be formed consisting of one representative from the Brecksville-Broadview Heights Education Association, one representative from the Brecksville-Broadview Heights Organization of Support Staff, one administrator, and one community member. The committee will make a recommendation to the Board as to when the days should be made up.

Calamity make up days will be reflected on the District's calendar. In the event of a delayed start due to District-wide or building calamity, teachers will be expected to report to work at their normal schedule unless directed otherwise. Such directive to remain at home shall not be unreasonably withheld. Teachers shall not be reprimanded if adverse weather conditions prevent them from reporting at this regularly scheduled time on days where there is a delayed start for students.

F. Assignment

1. The Superintendent, after consultation with the building principal or principals, will assign teachers or reassign teachers to buildings within the system. Building principals are responsible for assigning each teacher his/her instructional and non-instructional workload. The assignments are normally

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regarded as annual assignments but, with notification to the B.E.A. President, may be modified during the year by the principal as conditions warrant. No teaching assignment is regarded as permanent.

2. Prior to March 31st of each school year, each teacher will be given the opportunity of expressing any desired change in assignment by completing the Staff Survey and Transfer Request Form (Attachment 2). A teacher who requests consideration for a vacancy will be notified of a vacancy in the area stated on his/her Staff Survey and Transfer Request Form. During the summer break, such notification shall be by the District's website. Teachers may sign up for automatic email alerts about postings.
3. The needs of the school district are the major criteria for making instructional and non-instructional assignments. Other factors which shall be considered in developing equitable work loads are: size of the class, new programs, specialized needs of a typical student, specialized talents of the teacher, formal preparation as authorized on the state certificate/license, and personal preference of individual staff members.
4. An annual assignment notice shall be provided to each teacher prior to the end of the school year. Assignment at a later date or changes in assignment may be made by the administration if, in its judgment, it is the best interest of the school system. Every effort will be made to assign teachers to classes which correspond to their formal preparation, but exceptions may be made for a justified cause. The assignment notice shall include:
 - a. Subject area, course, and/or grade levels to be taught;
 - b. Building to which the teacher is assigned.

(Note: NO TA. The parties do not have a TA on parking stipends and Section 42 regarding stipends.)

5. In addition to the classroom instructional assignment, teachers may be assigned on an equitable basis, as determined by the building principal, such non-instructional assignments as supervision of homeroom, corridors, lunchrooms, playgrounds, and other tasks necessary for operating a school building. These tasks are considered a part of the total teaching assignment except when the Board approves certain duties deserving

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compensation above the salary schedule.

6. It is desirable to provide teachers the opportunity to be considered for vacancies. During the summer months administrative, teaching, and supplemental vacancies will be **listed posted** on the District's website. Teachers may sign up for automatic email alerts about postings. Teachers who apply for such vacancy within seven (7) days of the posting of the notice shall be given full consideration for any vacancy based upon area of competence, certification, evaluation, and length of service in the District.
7. When vacancies meeting specific requests are available, the teacher requesting such change will be given first consideration, providing that teacher is qualified for the position available.
8. In order to ensure effective delivery of instruction by appropriately certified and licensed individuals, a teacher must maintain his/her teaching certification/licensure for at least five (5) years after his/her date of hire. After that time, if the teacher has not taught in an area in which he/she is certified/licensed in any rolling five (5) year period, the teacher may drop that area of certification/licensure with notice to the Superintendent/designee as per Ohio Department of Education requirements, to be submitted on or before March 31 of the fifth (5th) year of the rolling five (5) year period via Attachment 2. For a teacher on a leave of absence, the rolling five (5) year period would encompass only years of active teaching service.
9. Teachers are expected to maintain on file with the Superintendent's office paperwork reflecting current licensure. In the event a teacher does not timely complete his/her coursework requirements or timely file to renew the teacher's licensure prior to the start of the school year, the teacher will be expected to apply for and receive a substitute license and will teach under the substitute license until the teacher's regular teaching license is renewed. The teacher will be paid at the hourly substitute teaching rate of pay and will not be eligible for benefits for the period in which they are teaching under the substitute license. The teacher will not be entitled to any retroactive reinstatement of the teacher's regular salary upon receipt of the renewed license. In the event the teacher does not obtain the renewed license prior to the start of the second grading period, the teacher will be terminated for cause pursuant to ORC 3319.16. This deadline of the start of the second grading

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period shall be mutually extended if it is violated for reasons beyond the teacher's control.

G. Position-sharing

Position-sharing shall refer to an option available to pairs of teachers to share one full-time position.

1. Position-sharing opportunities shall be granted pursuant to the teachers' seniority, i.e., the total years of seniority in the partnership.
2. The total number of position-sharing teachers shall not exceed ten (10) teachers, i.e., five (5) pairs per year. In no event will there be more than one (1) position sharing arrangement at any grade level for bargaining unit members assigned to general education classrooms in any K-3 at the elementary buildings unless the building administrator determines the master schedule can accommodate an exception. At the 4-5 elementary building there will be no more than three (3) position sharing arrangements with no more than one (1) per grade level/specials/special education unless the administrator determines the master schedule can accommodate an exception.
3. Initial applications for position-sharing teachers must be submitted not later than February 1st. Teachers who wish to reapply for the following year must submit their applications by March 1st. Each teacher shall assume the responsibility for finding his/her position-sharing partner but may request assistance from the Assistant Superintendent's Director of Human Resources' Office in finding a position-sharing partner. No teacher shall be required to position-share.
4. On or before April 1st the position sharing teams must submit for approval to the building principal a Position Sharing Plan ("Plan") which must address the following elements:
 - a. A full description of the teaching techniques, methods, and grading practices to be employed by the team;
 - b. How the team will communicate with one another to ensure information learned during school meetings or during the work day is timely shared;
 - c. How the position sharing teachers will handle parent or

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third-party communications and ensure both teachers are fully up to date on all issues and concerns regarding their students;

- d. How the teachers will effectively communicate during the course of the work day, work week and school year to ensure seamless communication between the teachers; and
 - e. How the teachers will divide up instruction and planning time.
- 5. Each teacher shall acquire one-year seniority for each year of position-sharing work providing each teacher works a minimum of 120 days per year or is scheduled to work two and one-half (2 ½) days per week. For example, a Kindergarten teacher with a fifty percent (50%) contract would be required to perform two and one-half (2 ½) days of instruction per week.
 - 6. Position-sharing teachers shall receive a pro-rata share of all salary and benefits as contained in this contract.
 - 7. The schedule to be worked by position-sharing teachers shall be determined by the administration with input from the teachers involved. The Plan developed by the team (see paragraph 4, above) will reflect the master schedule.
 - 8. A teacher with documented professional difficulties shall not be eligible for position-sharing.
 - 9. Position-sharing applications will be considered annually. Upon the dissolution of a partnership, the individual position-sharing teacher shall be guaranteed the contract that he/she held prior to position-sharing.
 - 10. Position sharing arrangements will be evaluated on an ongoing basis by the administration to determine if the Plan is being effectively implemented. The evaluation may include classroom observations and meetings with the team members. The team will meet with the administrator at least two (2) times prior to the end of the first semester to formally review the effectiveness of the position sharing arrangement. Any concerns related to the effectiveness of the position sharing arrangement will be promptly communicated to the team, which will be responsible for developing a strategy to address the concern(s), including

revising the Plan. If the concerns persist, the team will be advised prior to February 1st that the arrangement will not be approved for the following year. An unsuccessful position sharing arrangement will not preclude a teacher from applying for another opportunity with a different partner.

11. Position-sharing teachers who teach in the morning must attend all morning meetings; position-sharing teachers who teach in the afternoon must attend all afternoon meetings. Position-sharing teachers must attend all required evening meetings.
12. If more than five (5) pairs of teachers apply to position-share in any school year, anyone who has position-shared for at least three (3) years would not be eligible to position-share in that year.
13. Not being able to position-share during a particular school year does not prevent a teacher from requesting a part-time assignment. However, once a teacher has entered into a contract for a part-time position, he/she is only guaranteed that percent of employment in future years.

H.

... (Note: NO TA. The parties do not have a TA on this paragraph regarding meetings.)

SECTION 16 – RESPONSIBILITIES AND DUTIES OF INSTRUCTIONAL STAFF **IN EFFECT FOR THE 2022-2023 SCHOOL YEAR AND THEREAFTER**

A. Teacher Responsibility

1. All teachers are responsible to the Superintendent through the building principal or other administrative or supervisory staff members.
2. The senior high school teaching load will be up to six (6) assignments plus homeroom and an assigned non-curricular duty. Within the six (6) high school English academic class assignments (English I-IV, AP English & Creative Writing I-II), there shall be an effort to limit the assigned number of students to each English teacher to a total of 125 students as of August 1st, preceding each school year. High School teachers will have four hundred (400) minutes of planning time per week during the student day (prorated for part-time teachers). In no event, as of the August 1st date, shall there be a total in excess

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collaboration and/or individual planning time that will be determined by the teachers' preferences/needs. The schedule must be approved by the building administration. The scheduled time for each teacher will be dependent upon sufficient supervision of students by existing staff, supplemented as possible with volunteers.

B. Assignment of Student Teachers

1. Teachers shall be encouraged to recognize their obligation to the profession by accepting the assignment of student teachers.
2. Principals shall have the responsibility of selecting co-operating teachers and sharing with them the orientation of student teachers. The assignment of student teachers shall be done equitably.
3. In the event a college or university is barred from giving a stipend to a co-operating teacher, and instead gives that stipend to the District, the District shall create a supplemental contract for the cooperating teacher in the amount equal to the stipend the college or university awarded to the District. Said supplemental contract shall be paid to the teacher at the end of the semester in which the student teacher worked in the District.

C. Lesson Plans

A teacher shall have available clearly-written weekly lesson plans on the first school day of each week. The plans shall be based on the approved course of study and the standards made applicable to the District.

D. Professional Meetings

1. Teachers are encouraged by the Board to attend local, regional, state, and national meetings which contribute to professional growth. The Board may pay transportation and expenses. Prior approval to attend a meeting is required. The opportunity for attendance at meetings should be distributed as equally as possible by the administration.
2. These meetings shall be exclusive of OEA, NEA, and NEOEA conventions and business meetings.

E. Collecting Money

of 135 student assignments to each English teacher at the high school. For teachers who instruct English academic classes and specific English elective classes (Modern Novel, Debate, Public Speaking, Journalism & Newspaper Publishing), there shall be an effort to limit the assigned number of students to those English teachers to a total of 135 students as of August 1st, preceding each school year. In no event, as of the August 1st date, shall there be a total in excess of 145 student assignments to those English teachers at the high school. The Superintendent shall have complete discretion and authority after August 1st to assign in excess of the 135 or 145 students due to subsequent increased student enrollment. If the limits are exceeded as of the first Monday in October, each affected English teacher will receive a stipend of twenty dollars (\$20) for each student in excess of the 135 or 145 students assigned to the English teacher as of the first Monday in October. Students enrolled after the first Monday in October will not be counted toward the stipend. Said stipend shall be paid by separate check on or before the first payroll in November and is subject to withholdings (taxes, S.T.R.S., etc.).

3. Middle school teachers will have 400 minutes of planning time weekly during the student day (prorated for part-time teachers). Efforts will be made to assign each seventh and eighth grade English teacher a maximum of 135 students. However, if the 135-student limit is exceeded as of the first Monday in October, each affected seventh and eighth grade English teacher will receive a stipend of twenty dollars (\$20) for each student in excess of the 135 students assigned to the English teacher as of the first Monday in October. Middle school students enrolled after the first Monday in October will not be counted toward the stipend. Said stipend shall be paid by separate check on or before the first payroll in November and is subject to withholdings (taxes, S.T.R.S., etc.).
4. Each elementary teacher, intermediate teacher, elementary school counselor, **school** psychologist (all levels), and Speech/Language Pathologist (all levels) shall have at least four hundred (400) minutes of planning and conference time per week during the student day. This planning/conference time shall be in blocks of no fewer than ten (10) minutes. **No MBU shall have one hundred (100) minutes or more per week in 10-minute blocks.** In addition, building teachers may work with their respective grade level team leaders to devise a schedule that will release kindergarten-fifth grade teachers during the school day up to four (4) hours per year for

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A teacher shall be freed of the responsibility of collecting money from students, except for Board-approved fees or projects.

F. Parent-Teacher Conferences

1. Parent-teacher conferences (K-12) will be held on two evenings during the school year. Each evening will consist of three hours. Over the course of the two three-hour evenings for parent-teacher conferences, each teacher shall schedule a minimum of fourteen (14) in-person and/or telephone conferences (for the parents who are unable to attend in person). Teachers shall document each parental conference including the name, time and student's grade at the time of the conference. Additional comments shall not be required unless the student is in jeopardy of failing at the time of the conference or the teacher wishes to document the communication.
2. The scheduling of the parent conference evenings will be determined by the building principals K-5, 6-8, and 9-12 after receiving staff input. These dates will be announced at least thirty (30) days before the conference evenings.
3. Elementary teachers shall be provided additional release time as necessary to enable each teacher to complete parent-teacher conferences.
4. Intervention specialists, school psychologists, and counselors and SLPs shall attend parent-teacher conferences. School Psychologists and SLPs may be excused from parent teacher conferences subject to the six (6) hours of logged work in Section 19.I and Section 19, M.

G. Traveling Teachers

1. Each traveling teacher shall be given a minimum of fifteen (15) minutes to travel from one building to another. The fifteen (15) minutes shall come from the total student contact time of the traveling teacher.
2. Each traveling teacher shall be reimbursed at the IRS rate for mileage traveled going from one building to another.
3. Each traveling teacher shall only be required to attend the evening meetings of his/her home school.
4. The administration will make every effort to schedule each

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traveling teacher's planning and conference time adjacent to his/her traveling time, and will make every effort to limit the amount of times per day that each traveling teacher has to travel between school buildings.

5. If a traveling teacher is going to be late to the school to which he/she is reporting due to unforeseen or hazardous circumstances (e.g., bad roads due to inclement weather, vehicle break-down, etc.), that teacher will contact the building principal/designee at the school to which he/she is reporting as soon as possible. The building principal/designee shall make arrangements to have the class of the traveling teacher covered until the traveling teacher arrives.

H. Developmental Pre-School

1. Each teacher in the developmental pre-school program shall have students four (4) days a week (Monday through Thursday).
2. Fridays shall be used for conferencing, preparation, planning, and home visits.

I. Medical Procedures

1. No teacher shall be required to perform any medical procedures (including but not limited to bandaging cuts/abrasions, gastrostomy tube feedings, tracheostomy suctioning and catheterizations) on any student.
2. The administration of student medication shall be in accordance with the Ohio Revised Code and its regulations. No teacher shall be required to clean up body fluids of any student.
3. At the time a teacher or the District initiates an out of District trip, the affected teacher(s) can request a meeting with a building administrator and healthcare aide or coordinator (or athletic trainer for athletic trips) to discuss the participating students' needs and strategize how to address those needs.
4. A school employee under the definition appearing in ORC 2744.01(B) is immune from liability unless his or her acts or omissions were manifestly outside the scope of his or her employment or official responsibilities, involved malice or bad faith, were made in a wanton or reckless manner, or unless the

Revised Code expressly imposes liability.

5. In accordance with ORC 2744.07 and with respect to suits against a school district employee for acts or omissions in connection with a governmental or proprietary function, the District shall provide for the employee's defense if the act or omission occurred while the employee was acting in good faith and not manifestly outside the scope both of his or her employment or official responsibilities.

J. Non-classroom Teachers

Each elementary principal shall assign each teacher who is not a regular classroom teacher in his/her building to a grade level team. This non-classroom teacher, however, does not need to attend grade level team meetings or portions of grade level team meetings where information being discussed does not affect him/her.

K. Mandated Individually Administered Diagnostic Tests

1. Preschool teachers will receive a substitute for one (1) day per semester to accommodate the administration and grading of state-mandated diagnostic assessments (i.e. Early Learning Assessments). If a teacher requires additional release time due to class size, arrangements can be coordinated through the building principal.
2. Kindergarten teachers will use the first three days of school for kindergarten phase-in, orientation, and any required testing.
3. When a diagnostic test requires a one-to-one administration setting according to the required guidelines, the building principal shall work with the teacher teams to establish an appropriate testing schedule and to provide classroom teachers with substitutes when needed.
4. To facilitate the administration of diagnostic testing, a team approach to administration shall be utilized by ensuring that the educational professionals are assisting in the educational process (i.e., reading specialists, ELL teachers, regular education teachers, school counselors, etc.)

~~L. Professional Learning Community (Note: Moved to Section 15)~~

- ~~3. For middle and high school, sixty (60) minutes per week, divided into a minimum of thirty (30) minute blocks, will be~~

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~~dedicated to the work of professional learning communities ("PLC"). The collaboration of teams shall cover PLC work, the continuous improvement plans for the building ("CIP"), and the strategic (or long-range plan) of the district. PLC time shall not be considered planning time under the terms of this Agreement.~~

4. ~~At the Pre-K-5 level, the Administration may schedule one administratively directed grade-level or content-level meetings once per week for no greater than 50 minutes. In addition, thirty (30) minutes of administratively directed PLC time within the teacher day can be used once per month when needed.~~

M. College Credit Plus

1. In order to address the implementation of student options for state-mandated postsecondary education, a co-facilitated College Credit Plus (CCP) committee shall be created. The committee will meet regularly (at least quarterly) to develop a comprehensive plan for the implementation of College Credit Plus. The committee shall be comprised of an equal number of bargaining unit members and Brecksville-Broadview Heights City School District administrative employees. The bargaining unit members shall be appointed by the BEA President, and the administrative employees shall be appointed by the Superintendent. The total combined number of the committee members shall not exceed eight (8) unless additional staff is invited by mutual consent.
2. The co-facilitated committee shall present the product of its efforts to the BEA President and Superintendent on a mutually agreed upon date. The BEA and Board shall then negotiate the mitigating issues identified based on the recommendations of the co-facilitated committee for implementation during the 2017-2018 school year. The parties agree that the committee will meet quarterly in order to review, assess and, if necessary, refine the implementation of College Credit Plus as mutually agreed.
3. Adequate release time shall be granted for the work of the committee. If members of the College Credit Plus Committee determine by consensus to conduct some of their meetings/activities outside of the school year and/or school day, each member shall be compensated at the rate of .0007 of the highest teacher base in effect for each hour of College Credit Plus work beyond the teacher day. The members of the College Credit Plus Committee will determine the frequency of

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meetings beyond those contractually required, the date of meetings, location, and time of meetings.

SECTION 7 – LOCAL PROFESSIONAL DEVELOPMENT COMMITTEE

A. Responsibilities

A District-wide Local Professional Development Committee (LPDC) will be established in accordance with Ohio Revised Code. The responsibilities of this committee shall include, but not be limited to: (1) approving individual professional development plans for certificate/license renewal, (2) recommending in-service activities, (3) and obtaining/developing programs that will satisfy the Ohio Department of Education requirements for Professional Development Continuing Education Units (CEUs).

B. Release Time/Compensation

Adequate release time shall be granted to study requests, to research programs/in-service activities, and to obtain/develop programs for CEU's. If members of the LPDC determine to conduct some of their meetings/activities outside of the school year and/or school day, each member shall be compensated at the rate of .0007 of the BA base salary for each hour of LPDC work.

C. Facilities and Supplies

The Board shall provide reasonable facilities, supplies, and services to the LPDC.

D. Structure

This District-wide LPDC shall be comprised of eight (8) persons, four (4) of whom shall be teachers who are selected by the Association President. The LPDC will have five (5) voting members and three (3) alternates (one (1) teacher and two (2) administrators) on any given teacher-related issues. When discussing an administrative request, the administration will have the voting majority. The intention is for representation of each school building in the district within the distribution of members.

1. Each LPDC teacher member shall have a term of three (3) years, unless they are replaced prior to the end of the term by mutual agreement of the Superintendent and BEA President.

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2. If any vacancies occur in any of the positions selected by the B.E.A., the B.E.A. President shall be responsible for selecting teachers to fill the vacancies.
3. The members of the LPDC will determine the frequency of the meetings, the dates of the meetings, and the time of the meetings.
4. The members of the LPDC shall function under Robert's Rules of Order unless agreed otherwise in whole or in part.

SECTION 2 – RECOGNITION

A. B.E.A. Recognition

The Board recognizes the B.E.A. as the sole and exclusive representative for teachers certificated/licensed employees as described in Section B in matters pertaining to wages, hours, terms and conditions of employment, and the continuation, modification, or deletion of an existing provision of a collective bargaining agreement.

B. Bargaining Unit Members

1. Teacher(s) Members of the bargaining unit* (MBU) shall mean all certificated/licensed personnel, but excluding the Superintendent, Assistant Superintendent, Director of Human Resources, Director of Teaching, Learning, and Collaboration, Principal, Assistant Principal, Technology Coordinator, Director of Pupil Services, county employees, day-to-day substitutes, home instruction tutors, High School Athletic Director, and all other supervising and managerial personnel. Additionally, if any certificated/licensed employee holds a part-time administrative position during the regular school year that is excluded from the bargaining unit, his/her individual teaching position shall also be excluded from the bargaining unit for the period that he/she is in the part-time administrative position.
2. Long-term substitutes hired for less than one (1) full school year shall be excluded from the bargaining unit until said hired teacher shall be employed in the same assignment for more than sixty (60) actual work days at which time said teacher shall be considered a bargaining unit member and shall be given all of

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the rights and privileges of the Agreement beginning with the sixty-first (61st) day of employment subject to the provisions of Section 17. During the school year when a vacancy occurs due to death, resignation, retirement or termination of a teacher, a long-term substitute hired for less than one (1) school year may be employed. Long-term substitutes hired for one (1) full school year shall be considered members of the bargaining unit from their first day of employment and shall be given all of the rights and privileges of the Agreement from their first day of employment subject to the provisions of Section 17. A long-term substitute hired for less than one (1) full school year, whose position subsequently becomes a full year position because of a teacher's request for leave of absence extension, shall be considered a member of the bargaining unit after sixty (60) days in the same hired position, shall be given all of the rights and privileges of the Agreement subject to the provisions of Section 17 with the sixty-first (61st) day of employment, and will not be eligible for retroactivity from his/her first day of employment.

C. Rights of B.E.A.

The rights of the B.E.A., as set forth in this Agreement, are continuous unless challenged pursuant to Chapter 4117 of the Ohio Revised Code and the Rules and Regulations of the State Employment Relations Board (SERB).

**Correct the word Teachers to Members of the Bargaining Unit (MBU) throughout the Agreement. The parties agree the revision to this recognition clause does not add positions/personnel to the bargaining unit that were not part of the unit as of the ratification of this agreement.*

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